



POLICE DEPARTMENT

December 15, 2023

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Damian Weber :

Tax Registry No. 967387 :

28 Precinct :

Case No.

2022-25909

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Brian Arthur, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Craig Hayes, Esq.
Worth, Longworth & London, LLP
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To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Damian Weber, on or about January 21, 2021, at approximately 1640 hours, while assigned to the 28 Precinct and on duty, in the vicinity of 28 West 125th Street, New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 6, Paragraph 20

INVESTIGATIVE
ENCOUNTERS

P.G. 219-31

LICENSE PLATE READER
DEVICES

2. Police Officer Damian Weber, on or about January 21, 2021, at approximately 1640 hours, while assigned to the 28 Precinct and on duty, in the vicinity of 28 West 125th Street, New York County, abused his authority as a member of the New York City Police Department, in that he drew his gun without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

(now encompassed by A.G. 304-06, Page 1, Paragraph 1)

PUBLIC CONTACT
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 3, 2023. Respondent, through his counsel, entered a plea of Not Guilty. The CCRB called the complainant, § 87(2)(b) and offered Officer Espinoza and Respondent's Body Worn Cameras (hereinafter "BWC") in evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent guilty of both specifications and recommends the forfeiture of ten (10) vacation days.

ANALYSIS

Most of the facts of this case are uncontested. On January 21, 2021, Respondent and his partner, Officer Espinoza, were in their police vehicle in the vicinity of 131st Street in Manhattan.

While they were driving, the license plate reader (hereinafter "LPR") in their RMP alerted them that they may have driven past a stolen car. The LPR registered the license plate affixed to the complainant, § 87(2)(b) car, as a stolen plate. When Respondent received the alert from the LPR, he and his partner exited their RMP and approached § 87(2)(b) as she was exiting her vehicle. As Respondent approached § 87(2)(b) he drew his firearm from his holster and held it in what he characterized as a "SUL position" – a manner of holding a firearm that keeps it in a safe direction while allowing an officer to *be prepared* to use the weapon if needed. He then informed § 87(2)(b) that they received an alert that her vehicle s stolen and ordered her to turn around so that he could handcuff her. § 87(2)(b) complied and Respondent re-holstered his firearm.

Respondent then returned to his police vehicle and ran § 87(2)(b) license plate number through NYSPIN, which revealed that her car was not, in fact, stolen. Respondent proceeded to walk back to § 87(2)(b) explain the misunderstanding, and remove the handcuffs he placed on her. Respondent attempted to draft a Stop Report, but § 87(2)(b) was very upset and unwilling to provide the officers with any further information. Respondent provided § 87(2)(b) with a business card and departed without taking further police action.

According to the Mobile License Plate Reader Training Manual (CCRB Ex. 5), a LPR is "a specialized camera and computer that is capable of quickly capturing license plate numbers on passing vehicles and then converting them into text that is automatically compared against a 'hot list' of license plates of interest (e.g. stolen, wanted, suspended registration or insurance coverage etc.)." When the LPR alarm is activated, the member of service assigned to the police vehicle is to "verify by checking NYSPIN through [the] radio dispatcher or a Department mobile device that alarm and vehicle status remains active." Because the LPR is not programmed to scan

the state of registration on a license plate, it will activate upon a partial match. Therefore, "it is essential that the LPR operator verify the current status of the vehicle through NYSPIN prior to initiating any law enforcement action." (P.G. 219-31)

§ 87(2)(b) testified that on the date in question, she parked her vehicle on 131st Street, while she was watching videos on her cell phone. The vehicle she was driving at the time was a red Ford Explorer that was owned by her boyfriend, but she used it regularly with his permission. Upon exiting her vehicle, she observed a marked police vehicle stop about two cars away from her and two officers exited. She recalled seeing Respondent draw his gun and tell her to put her hands up because she was being arrested for a stolen vehicle. (Tr. 18)

§ 87(2)(b) recalled being surprised and confused when she was initially approached by the officers and proceeded to question them about their allegation that her car was stolen. She was then placed in handcuffs. § 87(2)(b) offered to provide the officers with her license and registration in an attempt to prove that her vehicle was not stolen, but the officers refused. A few minutes after being placed in handcuffs, the officers came back and let her go. (Tr. 21-22)

§ 87(2)(b) described feeling upset, embarrassed, afraid, and traumatized by this police encounter. She expressed that she was perplexed by the entire situation and unwilling to provide her identification to the officers after she was released from the handcuffs. (Tr. 21-24) CCRB's Exhibits 1 and 2 corroborate § 87(2)(b) testimony. Moreover, this Tribunal had the unique opportunity to observe § 87(2)(b) demeanor and body language when she testified and found her to be a credible witness. Having carefully reviewed the video evidence submitted coupled with § 87(2)(b) in-court testimony, I have no reason to doubt her veracity.

Respondent testified that on the date of the incident, he had been employed with the Department for roughly 18 months. He explained what an LPR is in general terms and how it

operates based upon his training in the Police Academy. Respondent also testified that he was aware, from his training, that if the LPR is activated, "before taking any action, you have to run that vehicle through the NYPIN system to verify if it is actually stolen." (Tr. 28)

According to Respondent's testimony, on the date in question he was in the recorder position of the RMP and his partner, Officer Espinoza, was the operator. The LPR in their vehicle made a noise alerting them of the nearby presence of a stolen vehicle. A screenshot of the LPR screen on that day showed § 87(2)(b) vehicle along with a note that read "out of state stolen vehicle." (CCRB Ex. 3) He then recalled seeing § 87(2)(b) exit the vehicle so he "exited [his] vehicle, drew [his] firearm, approached § 87(2)(b) told her to stop, turn around, put [her] hands behind [her] back, and placed her in cuffs and explained to her the reason why [he] put her in handcuffs." (Tr. 30)

When asked how he drew his firearm, Respondent testified that he drew his firearm in the "SUL position," whereby he had it in front of his chest, facing the barrel down towards the ground. He then stated that the reason he drew his gun was because "to [his] knowledge, this kind of stop would be considered a felony car stop." Respondent further testified that he was trained at the Academy that felony car stops are dangerous and very unpredictable and that he can exercise his discretion to draw his firearm "depending on how he views the situation." (Tr. 31-32)

Respondent estimated that his gun was drawn in the "SUL position" for about five to ten seconds, and that as soon as he realized that § 87(2)(b) was cooperative, he decided to holster it. He testified that he informed § 87(2)(b) why he was stopping her immediately after he handcuffed her. He then proceeded to run her license plate through NYSPIN to verify the status of the car and discovered that § 87(2)(b) vehicle was not stolen. (Tr. 31, 33-35)

Respondent testified that upon learning that her car was not stolen, he removed the handcuffs from § 87(2)(b) and asked for her identification so that he could write a "250 stop report," as he is required to do by the Patrol Guide. § 87(2)(b) refused to provide Respondent with her identification, so he provided her with a business card that included his and his partner's information. Thereafter he left the scene without taking further police action. (Tr. 35-36)

Additionally, Respondent testified that at that point in his career the LPR had never been activated, so this was his first experience with this system. He also stated that while he knew he was supposed to verify the status of a vehicle on NYSPIN prior to taking police action, he simply forgot to do so on that day. Respondent avowed that since that date he has followed proper protocol on any occasion when the LPR registered a stolen vehicle. (Tr. 37, 45-46)

Patrol Guide 219-31 clearly delineates the procedure for members of service utilizing the LPR system. Respondent's actions on the date of the above-mentioned incident were a clear departure from the procedures outlined by the Patrol Guide and the training that he received at the Police Academy. In any paramilitary organization, an officer's deviation from proper procedure can yield undesirable consequences, including erosion of public trust. While members of service are not expected to be infallible, they are expected to follow protocols before taking police action that intrudes upon citizens' rights.

It is undisputed that Respondent did not follow the guidelines for the LPR system. Had he done so, he could have avoided stopping § 87(2)(b) altogether. Respondent's disregard of the rules constitutes sanctionable misconduct. I, therefore find Respondent Guilty of Specification 1.

Similarly, it is uncontested that Respondent drew his firearm upon exiting his RMP and approaching § 87(2)(b). Respondent testified that he was taught in the Police Academy that felony car stops (which he believed this to be) are "dangerous and very unpredictable."

Respondent drew his firearm in what he categorized as the "SUL position," whereby his gun was pointed down and not at § 87(2)(b). Furthermore, his firearm was drawn for approximately ten to fifteen seconds as he approached § 87(2)(b) before Respondent holstered it. Respondent suggested that members of service have the discretion to draw their weapon "depending on how [the officer] views the situation." (Tr. 31-32) However, after carefully reviewing the BWC footage and assessing the testimony of both § 87(2)(b) and Respondent, this Tribunal finds that Respondent exercised poor judgment when making the decision to draw his weapon without verifying the status of the alert before approaching.

Respondent testified that he believed § 87(2)(b) car was stolen when he exited his RMP and therefore this was a "felony car stop." However, he missed a crucial step in the process by not verifying the status of the alert before taking police action – a step that the Patrol Guide specifically underscores must be completed before any enforcement action. Had Respondent taken the additional step of cross-referencing the alert with NYSPIN, Respondent would have learned that § 87(2)(b) car was not stolen and he could have avoided the encounter altogether. Instead, Respondent prematurely took enforcement action which resulted in a police encounter that caused unnecessary alarm to a civilian when he drew his weapon.

In addition, even if this were a "felony car stop" as described by Respondent, officers should use force proportionate with the reaction of the motorist being stopped. Patrol Guide 221-01 ("Force Guidelines") states at the outset that: "Force may be used when it is reasonable to ensure the safety of a member of the service... In all circumstances, any application or use of force must be reasonable under the circumstances. All members of the service at a police incident must use reasonable force, employ less lethal alternatives and prioritize de-escalation, whenever possible." In determining whether the use of force is reasonable, members of service

can consider a variety of factors to analyze the situation. One of those factors is the immediacy of the perceived threat or harm to members of service, bystanders or the subject themselves. In this case, there was no indication that § 87(2)(b) posed a threat to the safety of Respondent or anyone else. § 87(2)(b) demeanor was cooperative and she was not acting in an aggressive manner during her initial interaction with the Respondent or the three other officers. Moreover, the Patrol Guide further provides: "The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present." (P.G. 221-01, page 3) Based upon a careful review of the BWC footage and consideration of Respondent's testimony, this was not the case on the date in question. As such, I find Respondent guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 3, 2019 and has no formal disciplinary history in his near five-year tenure, has been found Guilty of stopping § 87(2)(b) and drawing his firearm without police necessity.

The CCRB has recommended a penalty of thirteen (13) vacation days; the presumptive penalty of three (3) days for the unlawful stop charge and the presumptive penalty of ten (10) days for the unlawful threat of force for taking out his handgun. Counsel for Respondent

suggested re-training his client rather than imposing the forfeiture of any vacation days because this was simply a mistake on his client's part and officers are not "infallible." (Tr. 52, 58-59)

Members of service are not infallible, but they are held to a higher standard than ordinary civilians. In order to maintain good order and discipline within the Department, officers are expected to follow the protocols and standards demarcated in the Patrol Guide with fidelity. An officer's failure to do so, even when it does not constitute nefarious conduct, can have a negative impact on the civilian involved and a deleterious effect of the Department's reputation in the community. Respondent missed an essential step in the LPR process and subsequently used poor judgement in his encounter with § 87(2)(b) all of which culminated in a negative police interaction.

I am in agreement with the CCRB that this Respondent's misconduct warrants the presumptive penalty promulgated by the Disciplinary Guidelines for each of the specifications. However, I am recommending that they run *concurrently* for a total of ten (10) vacation days, rather than a consecutive thirteen (13) days. This is a significant penalty that is designed to address the misconduct without being unnecessarily punitive in nature.

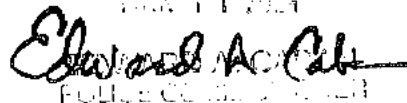
Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

A. PROVED

MAR 11 2024



EDWARD A. CAB



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ARVA RICE
INTERIM CHAIR

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

December 12, 2023

Re: Police Officer Damian Weber

Disciplinary Case No. 2022-25909

Commissioner Caban:

The above-referenced case was tried on November 3, 2023, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Officer Damiam Weber, was charged with the following:

1. Police Officer Damian WEBER, on or about January 21, 2021, at approximately 1640, while assigned to 028 PCT and on duty, in the vicinity of 28 West 125th Street, New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

PG 212-11, PAGE 6, PARA 20 INVESTIGATIVE ENCOUNTERS; PG 219-31, LICENSE PLATE READER DEVICES

2. Police Officer Damian WEBER, on or about January 21, 2021, at approximately 1640, while assigned to 028 PCT and on duty, in the vicinity of 28 West 125th Street, New York County, abused his authority as a member of the New York City Police Department, in that he drew his gun without sufficient legal authority.

PG 203-10, PAGE 1, PARA 5 PUBLIC CONTACT – PROHIBITED CONDUCT [NOW ENCOMPASSED BY NYPD AG 304-06 PAGE 1 PARA 1 PROHIBITED CONDUCT]

CCRB has reviewed the November 29, 2023, draft decision of Assistant Deputy Commissioner - Trials Vanessa Facio-Lince (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Weber guilty of Specification One (1) and Specification Two (2). It is respectfully requested that you accept ADCT Facio-Lince’s findings and find the Respondent guilty of Specification One (1) and Specification Two (2). We also ask that you reject ADCT Facio-Lince’s recommended penalty of the forfeiture of ten (10) vacation days and instead impose the CCRB’s recommended penalty of the forfeiture of thirteen (13) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

Exhibits

CCRB’s Exhibit

- 1) PO Weber’s BWC from January 21, 2021
- 2) PO Espinoza’s BWC from January 21, 2021
- 3) Screenshot of License Plate Reader screen
- 4) PO Weber Training Records Request Response
- 5) License Plate Reader Training (“11 Mobility LPR Training 19May20 v2”)

Testimony

§ 87(2)(b)

§ 87(2)(b) testified that she has been a resident of New York City since the age of three (Transcript 16). On January 21st, 2021, she was sitting in the red Ford Explorer owned by her boyfriend. § 87(2)(b) had permission from her boyfriend to drive the vehicle (Transcript 17). She testified that she got out of the vehicle to cross the street to buy some cookies when a police officer came up to her with his gun drawn (Transcript 18). The police officer told her to put her hands up and said that she was under arrest for a stolen vehicle (Transcript 18). § 87(2)(b) stated that she was confused as to what was happening (Transcript 19) and asked the officer how the vehicle had been reported stolen (Transcript 20). She stated that she was then handcuffed (Transcript 21). § 87(2)(b) testified that she felt embarrassed and scared while she was handcuffed (Transcript 21), having had a gun drawn on her and having been told she was driving a stolen vehicle (Transcript

24). § 87(2)(b) testified that the officer came back, explained that the car was not stolen, and released her from the handcuffs (Transcript 22). She also testified that the incident left her traumatized and that it caused her to change her car (Transcript 22).

Officer Damian Weber

Officer Weber testified that on January 21, 2021, the vehicle he was in was equipped with a License Plate Reader (LPR), a device that scans license plates (Transcript 26-27). He testified that he had received training on the LPR and that he is aware that if a car comes up stolen on an LPR, that he must first run the vehicle through another system called NYSPIN before taking any action based upon an alert from the LPR (Transcript 27-28). He testified that he could access the NYSPIN system through his department cell phone (Transcript 28).

Officer Weber testified that at about 4.40 p.m. on January 21, 2021, the LPR in his vehicle alerted him to a stolen vehicle (Transcript 29). The vehicle that triggered the alarm was the car being driven by § 87(2)(b) (Transcript 30). Officer Weber exited his vehicle, drew his firearm, approached § 87(2)(b) and told her to stop and put her hands behind her back. He then placed § 87(2)(b) in handcuffs and told her the reason he had done so (Transcript 30). Officer Weber testified that before doing this, he did not check with NYSPIN to verify whether § 87(2)(b) car was stolen, the reason being that he forgot to do so (Transcript 31). He testified that, throughout this process, § 87(2)(b) was very compliant (Transcript 33). Officer Weber then ran the license plate through NYSPIN, where he discovered that the vehicle was not stolen (Transcript 34). He then went back to § 87(2)(b) and released her from the handcuffs (Transcript 35).

Officer Weber also testified that the LPR had a screen inside his vehicle that displayed § 87(2)(b) license plate (Transcript 38-39). The screen that Officer Weber was able to view that day is the screenshot contained in CCRB Exhibit 3 (Transcript 39-40). Officer Weber testified that this screen contained the information that the vehicle that had triggered the alarm was an out-of-state vehicle, from Kentucky (Transcript 40). Officer Weber also testified that the screen showed him that § 87(2)(b) car had New York plates (Transcript 41). Officer Weber admitted that, even before he exited his vehicle that day, he had information that the stolen car did not match what he could observe of § 87(2)(b) vehicle (Transcript 41-42). Officer Weber again testified that § 87(2)(b) was compliant (Transcript 42) and that she was also confused and did not appear to understand why this was happening to her (Transcript 45). Officer Weber also acknowledged that it was his responsibility to know what the Patrol Guide required of him, and to follow the Patrol Guide (Transcript 44).

RESPONDENT IS GUILTY OF SPECIFICATIONS ONE AND TWO

We agree with the Tribunal's decision finding Officer Weber guilty of both Specifications One and Two (Decision 2). Officer Weber acknowledged at trial that Patrol Guide 219-31 required him to verify the status of a vehicle through the NYSPIN system before taking any police action based upon an LPR alert. We agree with the Tribunal's finding that Officer Weber's failure to take this step was "a clear departure from the procedures outlined by the Patrol Guide and the training that he received at the Police Academy" (Decision 6). Officer Weber's failure to run § 87(2)(b) vehicle through LPR prior to approaching her is compounded by that fact that, by his own admission, Officer Weber already had information from the LPR screen that the vehicle responsible for the LPR alarm was not § 87(2)(b) vehicle but was an out-of-state vehicle (Transcript 41-42). As a result of Officer Weber's failure to follow the Patrol Guide and

his training, § 87(2)(b) unnecessarily underwent an experience that left her “scared” and “traumatized” (Transcript 21-22) and the CCRB agrees with the Tribunal’s finding that such failures on the part of an Officer can result in an “erosion of public trust” (Decision 6).

We further agree with the Tribunal’s opinion that Officer Weber committed further misconduct when he drew his gun as he approached § 87(2)(b) (Decision 7-8). As the Tribunal noted, at no point during the incident was there any indication that § 87(2)(b) was a threat to Officer Weber or anyone else, and the evidence proved that she complied with all of Officer Weber’s orders (Decision 8). During her testimony § 87(2)(b) testified about how it felt having a gun drawn on her (Transcript 24). The experience that § 87(2)(b) underwent was exacerbated when Officer Weber not only stopped and handcuffed her when he should not have done so, but also drew his weapon as he approached her.

We agree with the Tribunal’s opinion that Officer Weber should receive the presumptive penalties for each of the charged violations but disagree that these penalties should run concurrently. Officer Weber increased his misconduct and could only have heightened the fear that § 87(2)(b) must have felt when he drew his gun that day. This is a separate act of misconduct that warrants a separate, concurrent penalty.

CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on the charged Specifications. Based on the presented arguments above, Officer Weber is Guilty of Specifications One (1) and Two (2) and the CCRB recommends the penalty of the forfeiture of thirteen (13) vacation days.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
APU Prosecutor
NYC Civilian Complaint Review Board

cc: Craig Hayes, Esq.
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